IN THE SUPERIOR COURT OF JUDICATURE

IN THE HIGH COURT OF JUSTICE

[COMMERCIAL COURT]

HELD IN ACCRA ON 9TH DECEMBER, 2025

BEFORE HIS LORDSHIP JUSTICE EMMANUEL A. LODOH, J.

SUIT NO. CM/BDC/0312/2023

CHRISTIAN OKOE REINDOF **PLAINTIFF**

300 W NORTH AVENUE 907

CHICAGO, ILLINOIS 60610

[SUING PER HIS LAWFUL ATTORNEY

ELLIOT NII CARL REINDORF WITH

ADDRESS GW-0151-9067 ZINGA

ROAD, SAPEIMAN, ACCRA

VS

REHOBOTH PROPERTIES LIMITED **DEFENDANT**

145 NORTH LEGON GM-060-274

ACHIMOTA, ACCRA

JUDGMENT

The Plaintiff, per his Lawful Attorney on 23rd February, 2023 caused to be issued out of the Registry of the Commercial Court, Accra a Writ of Summons in which he seeks the following reliefs:

(a) An order for the recovery of the sum of USD 61, 000 being the sum due for the payment of the 3-bedroom apartment at Rehoboth Knightsbridge, Kwabenya.
(b) Interest on the above at the going commercial bank rate of lending from August, 2021 to date of final payment.
(c) General damages for breach of contract
(d) Cost of this action
(e) Plaintiff's legal fees

Case of the Plaintiff

The case of the Plaintiff is pleaded in his Statement of Claim filed on 23rd February, 2023. In the said process the Plaintiff contended that the Defendant entity was into real estate development and sale. That following his expression of interest in acquiring a property, an offer letter of a sale of a 3-bedroom Apartment was made to him at the agreed sum of "Sixty-one thousand United States Dollars (USD65,000.00)" by the Defendant. That the said offer letter was dated 24th June, 2021.

The Plaintiff then detailed in paragraphs 6 to 9, the terms of the agreement as follows:

6. The Plaintiff states the he was required to pay an amount of Sixty-Five thousand United States Dollars (USD 65, 000).

7. Out of the purchase price of Sixty-Five Thousand United States Dollars, the Plaintiff was expected to pay a discounted amount of Sixty-One Thousand Five Hundred United States Dollars (USD 61, 500.00).
8. The Plaintiff further states that the required initial deposit was Fifty Thousand United States Dollars (USD 50,000). This payment was to be received by the Defendant at the execution of the contract.
9. The Plaintiff states that per the Terms and condition of the sale, the Defendant would assign the property to him (only after the final payment) for the remainder of the leasehold acquired by REHOBOTH PROPERTIES LIMITED.

The Plaintiff averred further that he fully complied with the terms and made an initial payment of USD 50,000.00 through bank transfer into the Defendant's Bank Account on 29th June, 2021, leaving an outstanding balance of USD 11, 500.00 which was spread over a period of Ten (10) months at a monthly instalment of USD1, 150.00 to be paid on or before the 30th of each month. The Plaintiff contended further that on the 2nd of August, 2021, he made further payment of USD 4, 017 and USD 7, 493 to the defendants, with were receipted by the Defendant.

According to the Plaintiff, even though no specific delivery date of the completed apartment was not stated in the contract, the Defendant has failed to deliver or assign any properties at the Rehoboth Knightsbridge, Kwabenya to him and several unsuccessful attempts have been made to reach the Defendant regarding updates on the project.

The Plaintiff therefore pleaded that the Defendant had defrauded him. He has therefore lost interest in the project and seeks the recovery of his USD61, 000.00 paid to the Defendant together with the incidental reliefs.

Case of the Defendant

The Defendants case is pleaded in their Statement of Defence filed on 12th April, 2023. They firstly admitted the antecedents of their relationship with the Plaintiff regarding the contract for the purchase of an apartment. They also did not deny the Plaintiff's claim that they are yet to deliver the property to him. Indeed in paragraph 9 of their Statement of Defence, the Defendant stated as follows:

> 9. Save that the defendant is yet to deliver the Plaintiff's property to him at Knightsbridge, Kwabenya the rest of the averments contained in paragraph 14 of the statement of claim are denied.

The Defendants also stated that contrary to the Plaintiff's assertion that no period was stated in the contract for the delivery of the completed apartment, "its normal delivery time was within 24 months from the execution of the contract but subject to other terms and condition".

Regarding why they failed to deliver the apartment, the Defendant pleaded in paragraphs 5 and 6 of the Statement of Defence as follows:

> 5. The Defendant avers that at the time of the contract with the Plaintiff it was then recovering from the ravages of COVID-19 pandemic which had a very devastating effect on business globally especially the construction industry of which the defendant is no exception.
> 6. The defendant avers that it's Knightsbridge project had delayed due to the COVID-19 pandemic which was an unforeseen natural disaster and it duly notified the plaintiff about same and the consequential effect it had on the timelines for delivery.

The Defendant again averred that in December, 2022 it informed the Plaintiff and other clients that construction will resume in February, 2023 with a strict completion timeline of twelve (12) months. They therefore denied the allegations of fraud made by the Plaintiff. The Defendant finally contend in response to the reliefs claimed by the Plaintiff as follow:

> 15. In reaction to paragraphs 20 and 21 of the Statement of Claim the defendant says that instead of a refund to the Plaintiff it is rather working round the clock to deliver his 3 bedroom Deluxe Plus apartment to him and that the defendant's marketing officers have been calling to update the plaintiff on the progress of work on his apartment.

Issues for Determination

As indicated earlier, this action was filed at the Registry of the Commercial Court. Accordingly following the unsuccessful attempts to settle the matter between the parties during Pre-Trial Settlement Conference, the Pre-Trial Judge on 17th November, 2023 set down the issues for determination by the Trial Court as follows:

1. Whether or not the Plaintiff paid an amount of Sixty-one thousand five hundred United States dollars to the Defendant for a three (3) bedroom Deluxe Apartment at Kwabenya.
2. Whether or not the parties agreed that the property should be built and delivered to the Plaintiff one year upon receipt of the purchase price by the Defendant.
3. Whether or not the Defendant had breached the terms and conditions of the agreement.

4. Whether or not the Plaintiff is entitled to the recovery of the sum of US61, 500.00 paid to the Defendant together with interest and cost.

The Trial

The Plaintiff's Attorney testified during the trial. He relied on his witness statement filed on 22nd March, 2024 was admitted as his evidence in chief. The Defendant also testified. Their evidence was rendered by John Cudjoe, the Transport and Equipment Manager of the Defendant Company. His witness stated filed on 15th April, 2024 was admitted as his evidence in chief.

Issue 1

The first issue for determination is whether or not the Plaintiff paid an amount of Sixty-one thousand five hundred United States dollars to the Defendant for a three (3) bedroom Deluxe Apartment at Kwabenya.

It is trite learning the a party who makes an allegation, which is denied, bore the burden of persuasion and the evidential burden of putting before the Court evidence in proof that the existence of the fact alleged is more probable than its non-existence.

The placement of the legal burden on the Plaintiff is consistent with sections 10(1) (2) (b), 11(1) (4), 14 and 17 of the Evidence Act, 1975, NRCD 323 and the principles set down in the case of **Okudzeto Ablakwa (No. 2) vs. Attorney General & Another [2012] 2 SCGLR 845 at 867.** In this case the court explained the law governing proof when it stated that:

> *"If a person goes to court to make an allegation, the onus is on him to lead evidence to prove that allegation, unless the allegation is admitted. If he fails to do that, the ruling on that allegation will go against him. Stated more explicitly, a party cannot win a case in court if the case is based on an allegation which he fails to prove or establish."*

Again in the case of **Takoradi Flour Mills vs. Samir Faris [2005-2006] SCGLR 882**, the court explained the burden cast by law on a plaintiff as follows:

> 7. *"It is sufficient to state that this being a civil suit, the rules of evidence require that the plaintiff produces sufficient evidence to make out his claim on a preponderance of probabilities, as defined in section 12(2) of the Evidence Decree, 1975 (NRCD 323). In assessing the balance of probabilities, all the party in whose favour the balance tilts is the person whose case is the more probable of the rival versions and is deserving of a favourable verdict"*

The allegation in respect of all the sums paid and received by the Plaintiff to the Defendant are contained in paragraphs 10, 11, and 12 of his Statement of Claim. The Defendant in their Statement of Defence did not dispute this allegations and expressed same in paragraphs 2 of the said pleadings as follows:

> 2. Paragraphs 1, 2, 3, 4, 5, 6, 7, 8, 9, **10, 11** and **12** of the statement of claim are admitted. [Emphasis mine].

It is trite learning that the Plaintiff is only called upon to lead evidence on matters which are in dispute. Therefore the law as I understand it is that where allegations are admitted either in the evidence or pleading by a Defendant, a Plaintiff's evidential burden will be deemed to be discharged. In the case of **Fori v Ayirebi and Others [1966] GLR 627** it was stated at page 647 of the Report as follows:

> *"The law is that when a party makes an averment and that averment is not denied, no issue is joined on that averment, and no evidence need be led. Again, when a party gives evidence*

of a material fact and is not cross-examined upon it, he needs not call further evidence of that fact."

Interestingly, the aggregate of the payments contained in paragraphs 10, 11 and 12 of the Statement of Claim will result in the sum of USD 61,510.00 instead of the USD 61,500.00 claimed. However, the Plaintiff is seeking the recovery of recovery of USD 61,000.00 and instead of USD 61, 510.00.

It is my considered view that it is not the duty of the court to make enquires regarding why a party elects to water down claim they are entitled to. Accordingly, applying the legal principles set out supra to the averments made in the above pleadings of the parties on the issue, I find that the Plaintiff claim that it paid an amount of USD61,000.00 as the case. The appropriate consequential order to make in the light of my finding supra will be therefore be for recovery of USD61,000.00 as endorsed on the Writ of Summons and repeated in paragraph 22 (1) of the Statement of Claim.

Issue 2

The second issue to be determined is whether or not the parties agreed that the property should be built and delivered to the Plaintiff one year upon receipt of the purchase price by the Defendant.

According to the Plaintiff, the contract had no delivery date. The Defendant did not expressly or categorially deny this claim by the Plaintiff in paragraph 13 of their Statement of Claim that the contract did not provide indications regarding when the apartment will be completed and handed over to him.

The Defendant's contention however in paragraph 4 of their Statement of Defence is that the normal delivery times was within 24 months after the execution of the Contract.

Now according to the Plaintiff Attorney, the terms of the agreement between the parties were circumscribed in the offer letter dated 24th June, 2021. They duly tendered the said offer letter as Exhibit "B". The authenticity of the said exhibit was not challenged during the trial.

The legal effect of failure to challenge evidence led during a trial is stated in the case of **National Investment Bank Ltd. v Messrs Agyakot Co. Ltd & Ors (H1/136/2006)** delivered 1st November, 2007 the Court of Appeal relied on the same principle and stated as follows:

> *"Where a witness had given a material evidence and that evidence was not challenged on cross-examination, the court might invariably take the failure to challenge as an admission by the opponent of the truth of the matter stated."*

It is trite knowledge that law that, in the absence of fraud or any other vitiating factors, parties are bound by the terms of agreements entered into. The legal effect of contract terms is that they create binding rights and obligations between the parties. Once agreed, these terms are enforceable by law, meaning that failure to comply with the terms of the contract can lead to remedies such as damages.

In the case of **Inusah v D.H.L Worldwide Express [1992] 1 GLR 267** explained a contract as follows:

> **"The general rule was that when a document containing contractual terms was signed, then in the absence of fraud or misrepresentation, a party of full age and**

understanding was bound to the contract to which he appended his signature. In such a case it would be immaterial whether he read the document or not".

Counsel for the Plaintiff at page 14 of his written legal submission stated as follows:

> **"It is respectfully submitted on behalf of the Plaintiff that the letter dated 24th June 2021 constituted an offer by the Defendant and not an invitation to treat and this offer was converted into a contract when the parties executed the document and there was a clear intention to create legal relations when the Plaintiff undertook to pay the agreed purchase price of USD 61, 500 per the receipts attached and marked as Exhibits C, D1 and D2 respectively."**

I agree with Counsel for the Plaintiff in his analysis of the legal effect of Exhibit "B" dated 24th June, 2021 and which is described as "Offer Letter Sale of 3 Bedroom Apartment (Deluxe Plus) At Rehoboth Knightsbridge, Kwabenya".

My agreement is underscored by my considered view that the offer letter was subsequently converted into a contract by operation of the "Execution" Clause expressed in Exhibit "B" as follows:

"

Execution

> **[3 bedroom apartment Deluxe Plus] which forms part of the Housing unit known as Rehoboth Knightsbridge situated at Kwabenya in the Greater Accra Region of the Republic of Ghana.**

Respectfully, if you accept the Offer of these TERMS and CONDITIONS, please let us have your Acceptance as soon as possible, as per the designated acceptance attached."

The disclosures expressed in the attachment to Exhibit "B" are as follows:

"

ACCEPTANCE

I have read the attached offer letter and by signing below I accept the terms and conditions stipulated therein. I deliver this portion back to your office as my Acceptance/guarantee to go ahead with the purchase."

As stated earlier, the subsequent to the execution of the acceptance, it is the undisputed evidence that the Plaintiff paid the initial deposit of USD 50,000.00 and subsequently completed full payement. In is therefore my considered view that exhibit "B", unless there is evidence to the contrary, shall be the document detailing the terms of the contract.

I have consequently examined the Offer Letter and I find no express terms regarding the completion and delivery date of the Apartment, a finding consistent with the Plaintiff's pleadings. Accordingly, the question therefore is whether or not other pieces of evidence abounds on the record in proof of the delivery period.

In this regard, I take the view that the evidential burden will shift to the Defendant to put before the Court evidence to show that it is normal under these agreements for the delivery period to be twenty four (24) months as it alleged.

The Defendant representative stated in paragraph 8 of his witness statement as follows:

8. My Lord, though the normal delivery time for such a property was 24 months from the execution of the contract it was subject to other terms and conditions such as unforeseen topographical constrains.

Again during cross-examination of the Plaintiff's Attorney by counsel for the Defendant before is what transpired:

Q: You agree with me, will you not, that at the time of the execution of the contract, the delivery timelines given to the Plaintiff was 24 months, is that right?

A: Yes

Q: You agree with me that, this 24 months delivery timeline was subject to other terms and conditions such as unforeseen topographical constraints, you agree with me.

A. Yes

Clearly the responses of the Plaintiff Attorney to the questions posed by the counsel for the Defendant begets of an admission of the Defendant's evidence on the issue of the delivery time being 24 months subject to unforeseen topographical constraints.

S. A. Brobbey in his book **"Essentials of the Ghana Law Of Evidence**", 2014 at page 112-113 comments on the importance of admissions as follows:

"The importance of admissions lies in the fact that the court can act on them without proof of the facts constituting the admissions. Admissions therefore constitute the second category of matters which require no proof. The rationale for this rule is obvious. If a person admits or concedes to facts which are against his interest, there is no need to proceed further to prove those facts before he would be bound by the terms of those facts.

Again in the case of **In re Asere Stool; Nikoi Olai Amontia IV (substituted by Tafo Amon II) v Akotia Oworsika III (substituted by Laryea Atiku III) [2005-2006] SCGLR 637.** It was stated in holding 2 of the Report as follows:

> *"Where an adversary has admitted a fact advantageous to the cause of a party, the party does not need any better evidence to establish that fact than by relying on such admission, which is an example of estoppel by conduct. It is a rule whereby a party is precluded from denying the existence of some state of facts which he had formerly asserted. That type of proof is a salutary rule of evidence based on common sense and expediency".*

Applying the law as stated supra and the evidence before the Court, regarding the admission by the Plaintiff, I find that the parties subsequent to the contract were in agreement that the delivery period of the apartment was to be within 24 months after the execution of the Contract.

Issue 3

I will now proceed to deal with the vexed issue whether or not the Defendant had breached the terms and conditions of the agreement. According the Plaintiff the term and condition of the contract which had been breached by the Defendant entity was their failure to deliver up the property within the agreed timelines.

The Defendant did not deny that they had failed to deliver the apartment within the agreed timelines. Indeed in paragraph 15 of the witness statement of the Defendant representative he states as follows:

> 15. Respectfully, my Lord, under the circumstances instead of a refund to the Plaintiff, the defendant is rather working round the clock to deliver the

Plaintiff's 3 bedroom Deluxe Plus apartment to him and in line with that marketing officers of the defendant company have been calling to update the plaintiff on the progress of work on the apartment.

A breach of contract is said to occur when one party fails to fulfil their legal obligations under the agreement, either by not performing at all or performing improperly. Generally, I hold the view that the failure of an estate developer to deliver a house as agreed generally constitutes a breach of contract. This is because in a property development agreement, the developer's primary duty is to complete and hand over the house within the agreed timeframe and specifications.

An appreciation of the evidence of the Plaintiff will show that the Plaintiff made the initial deposit of USD 50,000.00 to the Defendant on 29th June, 2021 after his attorney executed the contract on 24th June, 2021. This translates into a finding that per the agreed timelines, the property ought to have been delivered to the Plaintiff on or before 29th June, 2023.

The evidence of the Plaintiff is further that the Defendant failed to deliver the property as requested. The question therefore is whether or not the failure of the Defendant to deliver the property within the timelines amount to a breach of contract.

Now per the Defendants own admission they failed deliver the property to the Defendant within this was not done. Accordingly, I find that the Plaintiff has put before the court evidence to prima facie establish a breach of a fundamental term of the contract. Accordingly, the evidential burden shifts to the Defendant to put before the Court evidence to demonstrate that their failure to comply with the timelines did not constitute a breach of contract.

Now the evidence of the Plaintiff regarding the failure to comply with the completion plan is contained in paragraphs 8, 9, 10, 11 and 12 of their witness statement as follows:

8. My Lord, through the normal delivery time for such a property was 24 months from the execution of the contract it was subject to other terms and conditions such as unforeseen topographical constrains.
9. The time of execution of the contract with the plaintiff was unfortunately the time of the recovery from the ravages of the COVID-19 pandemic which unfortunately had a very devastating effect on businesses worldwide and the construction industry was no exception.
10. The Knightsbridge project had its fair share of the pandemic and thus the whole project including that of the plaintiff delayed due to the COVID-19 pandemic which was an unforeseen natural disaster.
11. My Lord, the defendant however duly notified the plaintiff about this unfortunate and unexpected occurrence and its consequential effects on the timelines for delivery.
12. My Lord, the defendant's marketing officials, kept updating the plaintiff about the progress being made on his project and informed him that the completion timelines have been shifted to early 2024.

The Defendant's evidence is that the COVID 19 epidemic impaired their ability to deliver on the project. My view however is that even though the COVID 19 event may make the performance of a contract impracticable, same cannot be applied generally to all situations.

My considered view is that a person seeking to assert an intervening event which make it impracticable to perform an obligations under a contract, that party must show proof of how the intervening factor impacted on their performance.

For example, the its is generally accepted that the impact or effect of COVID 19 applied differently to various jurisdictions. Some countries were severely hit while others were hit to a milder degree. I therefore hold view that it is imperative for the Defendant to put before the Court evidence to show how COVID 19 disrupted their construction activities, either financially or operationally.

Evidence may also be led to show how the long their workers were kept out of work as a result of the lockdown. To my mind therefore, simply brandishing COVID 19 as an event in time is not sufficient to rely on same without more as a defence against performance.

But I find as ironic the question posed to Plaintiff by Counsel for the Defendant when he suggests that the contract between the parties was executed during the COVID 19 period as follows:

> Q: You will agree with me that, at the time of the execution of this contract, was unfortunately the time of the recovery from the ravages of the COVID 19 Pandemic.
>
> A: Yes, it was during the COVID time.

My understanding the question and the responses given supra is that because the contract was executed during the COVID 19 period, it would be presumed that the Defendants were in full operational mode and therefore, where handicap's exists the Defendant ought to have known that the contract could not be executed during the COVID 19 period, but yet entered into an agreement, knowing very well it could not perform within the 24 months agreed upon.

Conversely, an alternative inference is that the Defendant will be presumed to know that it was not oblivious of the COVID 19 situation, and therefore knew and ought to know that notwithstanding the challenges that may arise within that period it could deliver the apartment within 24 months, hence the agreement.

Accordingly, to my mind the Defendant cannot now purport to prosecute the COVID 19 as a legitimate defence against performance.

Be that as it may, the Defendant evidence is further that they duly notified the Plaintiff and all other clients about extension of the construction timelines with a strict completion timelines and further that construction will resume in February, 2023 to be completed in 12 months, which will be February, 2024. When this question was put to the Plaintiff during cross-examination below is what transpired.

> Q: I am suggesting to you that when the Defendant was unable to meet the 24 months delivery deadline as a combined result of the topographical constraints and the ravages of COVID 19 Pandemic, the Defendant duly communicated this to the Plaintiff.
>
> A: Yes, what I could remember is that, when the 24 months was up, the Plaintiff reached out to the Defendant that, it has been more than 24 months and we were asking of the site number, site location, and when exactly the building will be ready or available. The Defendant came back and told us that it will be ready in 2024, but it never did.

I find from the evidence of the Plaintiff that they agreed to an extension of a further one year, ending February, 2024. I further I find from the responses above that notwithstanding the extension of the delivery period by one year, the Defendant still failed to complete and deliver the apartment in 2024. This was a fact admitted by the

Defendant in paragraph 15 his April, 2024 witness statement, where he indicates that the "Defendant is rather working round the clock to deliver the plaintiff's 3 bedroom Deluxe Plus apartment".

Concluding on this issue, I do not accept the evidence led by the Defendant in their defence, I therefore accept the evidence of the Plaintiff on the balance of probabilities. I accordingly, find that the Defendant has breached the terms of the agreement by failing to complete and deliver up the apartment within the agreed timelines

Fraud

It is trite knowledge that the standard for proof of fraud is proof beyond reasonable doubt. This is essentially because allegations of fraud albeit in a civil matter still considered a criminal matter. The question therefore is whether or not the Plaintiff has put before the Court evidence to establish beyond reasonable doubt that the Defendant had committed fraud arising out of false representation.

Upon examination of the evidence led by the Plaintiff I find that they even failed to show that the alleged representations made by the Defendant to them were false. It is my considered view therefore that this is a simple case of a contract gone bad.

Recovery of Principal Amount

The Plaintiff is seeking the return of the monies paid to the defendant. I find from the body of evidence that the Defendant has not demonstrated or evinced that they are willing or indeed have the capacity to deliver the property as contracted.

Proof of ability to deliver could have done by showing in the minimum photographs of what they have done so far in respect of the apartment. This they failed to do. Their failure

to tender evidence of the progress of work since 2023 to my mind therefore supports an inference that they lack the interest to perform their obligations under the contract.

Secondly, the lack of evidence to show the progress of work is indicative that no part of the Plaintiff payments have been made towards the construction of the apartment. I therefore agree with the Plaintiff in paragraph 35 of his witness statement when he states as follows:

> 35. In reply to paragraph 15 of the Statement of Defence the Plaintiff states that Defendant cannot be trusted to deliver the three 3-bedroom Deluxe Apartment to him. The Plaintiff further states that he has already commenced the process to acquired another property and therefore needs a refund of his money to enable him pay for the completion of this other property in good time.

I am of the considered view therefore that the Plaintiff is entitled to the recovery of the entirely of the sums already paid to the Defendant.

Interest

The Plaintiff has also asked for interest. My view is that the Plaintiff is entitled to interest, since the Defendant has kept the money without utilising same for the purpose for which it was granted. However, my view is that interest will be calculated from February, 2024 because the evidence supports a finding that the parties agreed to extend the timelines to February, 2024.

Damages for breach of Contract

The Plaintiff has asked for damages for breach of contract. My view is that the interest awarded will serve as damages, since the purpose of damages is to restore the injured

party to its former position. In the case of **KAMA HEALTH SERVICES LIMITED V. UNILEVER GHANA LIMITED; CIVIL APPEAL NO. J4/24/2013,** delivered on 19th July, 2013, the court posited that:

> *"interest is payable because the vendor has kept the purchaser's money under a contract which has failed as a result of the vendor's default. The appellant also raised the issue that the parties did not include interest as a term of their contract. Parties need not provide in their contract that interest shall be paid in the event of a breach. Interest payment follows failure of a contract under which payment has been made, as a form of damages for breach of contract*".

Therefore unless some other harm is proven to have been accused as a result of the breach, damages would not be awarded.

I have examined the witness statement of the Plaintiff and find evidence in that direction. This finding notwithstanding, I am of the considered view that the Plaintiff is entitled to nominal damages.

It is trite learning that nominal damages are sums awarded when a legal wrong has occurred but no substantial financial loss can be proven. They serve to recognize that a party's rights were violated, even if the breach caused little or no measurable harm. So for example, if a developer fails to deliver a house on time but the buyer suffers no measurable financial harm, the court may still award nominal damages to recognize the breach. Accordingly, in the circumstances of this case, I find it necessary to award nominal damages to the Plaintiff against the Defendant for breach of contract.

Conclusion

Concluding on all the matters herein, I am of the considered view that the Plaintiff has put before the Court evidence to establish his claim against the Defendant on the balance of probabilities, I hereby enter judgment in their favour against the Defendant as follows:

(a) Plaintiff is to recover the same of USD 61, 000 being the sum due for the payment of the 3-bedroom apartment at Rehoboth Knightsbridge, Kwabenya.

(b) Interest on the above at the prevailing SOFR rate of lending from February, 2024 o date of final payment.

(c) Nominal damages of Twenty thousand Ghana Cedis (GHS 20,000.00)

(d) GHS30,000.00

EMMANUEL A. LODOH J.

HIGH COURT JUDGE

Lawyers

1. Peter Antonio Esq., Counsel for Plaintiff
2. Christoph K. Koka, Esq. Counsel for the Defendant.